

Amendment No. 2 to SB2163

Briggs
Signature of Sponsor

AMEND Senate Bill No. 2163*

House Bill No. 2272

by adding the following as a new subsection in the amendatory language of SECTION 1:

(d) The limitation on personal liability of beneficiaries in § 35-15-1015 applies to beneficiaries of a trust formed under this section and the trustee is afforded all limitation of liability granted a trustee under § 35-15-1010. The limitation on personal liability of beneficiaries applies to licensing agreements placed into a trust pursuant to this section, as though the licensing agreement was made by the trustee or the tort was committed by the trustee in the course of administration of the trust.